

**BEFORE THE
COMMISSION ON TEACHER CREDENTIALING
STATE OF CALIFORNIA**

In the Matter of the Accusation Against:

NANETTE MACHLEIT, Respondent

Agency Case No. 2-476083810

OAH No. 2024090037

PROPOSED DECISION

Matthew S. Block, Administrative Law Judge (ALJ), Office of Administrative Hearings (OAH), State of California, heard this matter on May 13 and 14, 2025, in Sacramento, California.

Seth A. Curtis, Deputy Attorney General, represented Mary Vixie Sandy (complainant), Executive Director of the California Commission on Teacher Credentialing (Commission).

Matthew Chevedden, Attorney at Langenkamp, Curtis, Price, Lindstrom & Chevedden, represented Nanette Machleit (respondent), who was present.

Evidence was received, the record closed, and the matter submitted for decision on May 14, 2025.

FACTUAL FINDINGS

Jurisdictional Matters

1. On August 17, 2015, the Commission issued respondent a Clear Education Specialist Instruction Credential (Credential). The Credential will expire on September 1, 2025, unless renewed. On July 8, 2015, the Commission issued respondent a Crosscultural, Language, and Academic Development Certificate (Certificate). The Certificate need not be renewed and will remain in force as long as the valid prerequisite credential is held concurrently.

2. Respondent previously held the following credentials: (1) a Clear Multiple Subject Teaching Credential, which was issued on November 14, 2017, and expired on December 1, 2022; (2) a Level 1 Education Specialist Credential, which was issued on June 12, 2013, and expired on July 1, 2018; (3) a Preliminary 5-Year Multiple Subject Teaching Credential, which was issued on May 30, 2013, and expired on June 1, 2018; (4) an Emergency Crosscultural, Language, and Academic Development Permit, which was issued on September 1, 2013, and expired on October 1, 2015; and (5) a Certificate of Clearance, which was issued on August 19, 2010, and expired on September 1, 2015.

3. On July 24, 2024, complainant's representative signed and thereafter filed an Accusation against respondent in her official capacity. The Accusation alleged cause to discipline respondent for: (1) unprofessional conduct; (2) immoral conduct; (3) evident unfitness for service; and (4) acts of moral turpitude. More specifically, the Accusation alleged that on October 24, 2022, respondent twisted the skin of Student 1's arm, causing her to scream in pain. Additionally, the Accusation alleged that on a prior incident, respondent slammed Student 1 into a chair when she was not following directions.

4. As factors in aggravation, complainant alleged: (1) respondent's misconduct evidences multiple acts of wrongdoing and demonstrates a pattern of misconduct; (2) respondent's misconduct was surrounded by or followed by bad faith, dishonesty, or other violation of the law governing educators; (3) respondent's misconduct significantly harmed a child trusted to her care, or significantly harmed the public or the educational system; and (4) respondent has demonstrated indifference toward the consequences of her misconduct.

5. Respondent timely filed a Notice of Defense to the Accusation. The matter was set for evidentiary hearing before an ALJ of the OAH, an independent adjudicative agency of the State of California, pursuant to Government Code section 11500 et seq.

Background

6. The Pioneer Union School District (District) is a small school district in unincorporated El Dorado County. There are only two schools in the District: Pioneer Elementary School (Pioneer) and Mountain Creek Middle School, which are located adjacent to each other in Somerset, California.

7. The District is governed by various policies. Policy No. 4119.21 provides that it is inappropriate for a District employee to physically abuse, or willfully harm or injure a child. Policy No. 4119.24 prohibits adults from intruding on a student's physical or emotional boundaries unless necessary in an emergency or to serve a legitimate purpose related to education or safety.

8. At all relevant times, respondent worked for the District as a special education teacher servicing both schools. Each District student receiving special education services are also assigned to a general education classroom. Respondent's

classroom was known as the Learning Center. Respondent and her instructional aides would periodically pull special education students from their general education classrooms and take them to the Learning Center for instruction. They would also “push in,” or join the special education students in their general education classrooms, when needed for extra support.

Student 1

9. In 2022, Student 1 was a five-year-old moderate to severe special education student assigned to a general education kindergarten class at Pioneer. Student 1 has been diagnosed with autism and attention deficit hyperactivity disorder. She was prone to tantrums and acts of violence against other students, and she frequently eloped from the classroom.

10. Per the terms of her Individualized Education Plan, Student 1 was assigned a one-on-one instructional aide. When the fall 2022 semester started, Laura Hogan was respondent’s one-on-one instructional aide. When the District hired Katherine Levin in September 2022, she took over for Ms. Hogan. Ms. Hogan is now a full-time nursing student. Ms. Levin is still employed as an instructional aide at Pioneer.

11. Both Ms. Hogan and Ms. Levin testified at length at hearing about Student 1’s behavior. Ms. Hogan described Student 1 as “unregulated emotionally.” Ms. Levin acknowledged Student 1 was difficult to work with but explained that she had a good relationship with her. According to Ms. Levin, respondent used to refer to Student 1 as the “monster child.”

Events on October 24, 2022

12. On October 24, 2022, while Ms. Levin and Student 1 were walking to the Learning Center, Student 1 told Ms. Levin that her mother had given her a new Elsa doll from the Disney movie *Frozen*. Ms. Levin asked Student 1 if she received the doll for being good. Student 1 replied that her mother had choked her and held her hands up to her own neck to simulate choking. Respondent was not in the Learning Center, so Ms. Levin walked Student 1 back to her general education classroom. She reported what Student 1 said to the Pioneer principal and the two of them filled out a report to file with Child Protective Services (CPS).

13. After Ms. Levin filled out the CPS report, she went outside during the morning recess, where she saw Student 1 attempting to play frisbee with the boys in her class. Ms. Levin could see Student 1 was getting frustrated because she was unable to catch the frisbee. She began to scream and told one of the boys in her class to “shut the fuck up.” Ms. Levin redirected Student 1 to another activity away from the boys, and they returned to class when the recess was over.

14. When Student 1 returned to class, she realized the worksheet she had been working on before recess was still on her desk. She wanted a new worksheet, so she ripped up the one that was on her desk. Ms. Levin told her she needed to place the ripped-up worksheet in the trash, and Student 1 told her to “shut the fuck up” and walked out of the classroom. Respondent had previously requested Ms. Levin keep Student 1 away from other children when she was in an agitated state, so Ms. Levin walked with her to the school office.

15. Student 1 calmed down once she got to the office. However, at approximately 1:30 p.m., she looked out the window and saw her class playing on the

playground during an afternoon recess. She started screaming and throwing a tantrum because she wanted to go outside with her class. Respondent was present in the office at the time, and she began acting as if she were screaming back at Student 1, although no sound was coming from respondent's mouth. According to Ms. Levin, that only upset Student 1 more. She calmed down after about 20 minutes, and respondent told Ms. Levin to take a break. While Ms. Levin took a short break, respondent took Student 1 outside to the playground.

16. Ms. Levin went outside and saw that Student 1 was again attempting to play frisbee. She then walked over to the slide and climbed to the top. Rather than slide down the slide, the child in front of Student 1 sat down at the top. When she did, Student 1 kicked her in the back. When Student 1 got to the bottom of the slide, Ms. Levin redirected her away from the other children. They played frisbee for several minutes before Student 1 told one of the other children to "shut the fuck up." At that point, Ms. Levin decided to remove Student 1 from the playground.

17. As they were walking back toward the school, Student 1 realized that recess was coming to an end, and she became agitated. She sat down on the blacktop, began screaming, and refused to move. Ms. Levin requested assistance over the radio and Ms. Hogan and respondent came out to assist. Ms. Levin suggested that they stay on the blacktop with Student 1 until she calmed down, but respondent said they needed to take Student 1 back to the school office. Ms. Levin was on Student 1's left, and respondent was on her right. They were able to convince Student 1 to stand up and start walking toward the office, but they only made it halfway before she sat down again, refused to move, and started screaming "shut the fuck up."

18. Respondent told Ms. Levin she wished they could record Student 1 so her mother could see the way she behaved at school. Ms. Levin pulled out her phone and

started recording Student 1. According to Ms. Levin, Student 1 continued screaming obscenities, but after several moments, she "screamed like she had never screamed before." Ms. Levin looked up and saw that respondent was using each of her hands to twist the skin on Student 1's right forearm arm in opposite directions.

19. Ms. Levin told respondent that they needed to call Student 1's mother. Respondent agreed and told Ms. Hogan to contact the office via radio and have someone call her. Ms. Hogan did so, and then redirected her attention to shielding the other children from hearing and seeing how Student 1 was behaving. Ms. Hogan heard Student 1 continue to scream but did not actually see respondent twist her arm. The Pioneer principal eventually came out to assist, and he was able to pick Student 1 up off the ground and take her to the office.

20. A.C. is Student 1's mother and testified at hearing. On October 24, 2022, she received a call from Pioneer telling her she needed to pick Student 1 up from school. As A.C. was walking toward the Pioneer office, she encountered Ms. Levin and respondent. A.C. and Student 1 both liked and trusted Ms. Levin. As A.C. approached Ms. Levin and respondent, she noticed Ms. Levin had her arms crossed and looked very pale. Respondent was very angry. Her arms were flailing, and she told A.C. it was time for Student 1 "to go someplace else."

21. After several moments, Student 1 came running toward her mother and said, "she hurt me" and "my arm hurts." When they got into the vehicle, Student 1 began hyperventilating. A.C. looked at Student 1's right arm and noticed the skin looked red.

Prior Incident

22. Ms. Levin had difficulty sleeping that night based on what she observed. The following day, she went to report the incident to District Superintendent Patrick Paturel. When she did, Mr. Paturel asked Ms. Levin if she recalled any other incidents between respondent and Student 1. She told him no. However, later that evening, she recalled an incident in which respondent “slammed” Student 1 into a chair, which she reported to Mr. Paturel the following morning.

23. Ms. Levin also described this prior incident in her testimony at hearing. It occurred approximately one and a half weeks before the incident on October 24, 2022. Student 1 was in the Learning Center and was being rude to Ms. Levin. Respondent did not like the way Student 1 was behaving and walked over to correct the behavior. Student 1 was “flippant” with respondent and refused to sit down on her chair. When she did, respondent turned the chair around, wrapped her arm around Student 1’s torso, and forcefully pushed her back down into a seated position on the chair. Student 1 got up and walked over to respondent’s chair, at which point respondent went over and tipped the chair upward to get Student 1 off it. She then told Ms. Levin to remove Student 1 from the Learning Center.

District Investigation

24. Mr. Paturel testified at hearing. He became the District Superintendent in 2022 and is familiar with Student 1. He described her behavior as “attention-seeking,” and she was known to rip up papers, throw chairs, and harm other students when she did not get her way. Mr. Paturel did not personally witness the incident on October 24, 2022, and only learned of it when Ms. Levin went to speak with him the following

morning. Based on Ms. Levin's demeanor, Mr. Paturel believed she had witnessed something that was serious and "clearly wrong."

25. Mr. Paturel explained that it is never advisable for an educator to place their hands on a child. Pioneer employees are required to attend Crisis Prevention Intervention training, which instructs that a student should only be restrained as a "last resort," and only if the student poses a threat to their own safety or the safety of others. Based on Mr. Paturel's training and experience, he does not believe respondent should have placed her hands on Student 1. She was being stubborn and noncompliant, but she was sitting on the ground and refusing to move, which did not pose a threat to her own safety or the safety of others.

26. Several days after the incident on October 24, 2022, Mr. Paturel interviewed Student 1 and A.C. in his office. Mr. Paturel used a Pioneer yearbook to build rapport with Student 1. When he showed her photographs of her friends and some Pioneer staff members she responded favorably. However, when Student 1 saw respondent's photograph in the book, she became angry and said, "she hurt my arm." She then repeatedly grabbed her arm and twisted it while saying "two hands." Mr. Paturel showed Student 1 several other photographs to help calm her down. Respondent's photograph was the only one Student 1 had a negative reaction to. A.C. discussed the interview in her testimony at hearing as well, and her account of what occurred was consistent with Mr. Paturel's.

27. Mr. Paturel interviewed respondent on October 27, 2022. She told him she did not feel the need to defend herself because she had done nothing wrong.

Video Recording

28. A 25-second video recording of the incident was received in evidence at hearing. According to Ms. Levin, she recorded for longer than 25 seconds, and she does not know what happened to the additional footage. In the recording, Student 1 screams, "you're squeezing me," and then says "shut the fuck up" two times. Only Student 1's legs and feet are visible on video. Ms. Levin was shown the recording at hearing. Her demeanor was calm throughout most of her testimony. However, she became visibly upset when watched the recording and heard Student 1 scream.

Respondent's Evidence

RESPONDENT'S TESTIMONY

29. Respondent testified at hearing. She received her mild/moderate special education credential in 2013 and started teaching special education at a school in El Dorado Hills, California, after which she went to work for the District.

30. Respondent first met Student 1 when she was in preschool. She was called into Student 1's classroom on multiple occasions because Student 1 was behaving inappropriately or harming other students. Respondent employed various de-escalation techniques to combat Student 1's bad behavior. The techniques were occasionally successful but usually short lived. Respondent explained that if Student 1 got her way she was happy, but as soon as she was asked to do something she did not want to do her behavior worsened dramatically. She would use profanity, feign injury, and accuse others of hurting her.

31. Respondent testified that she "loved" Student 1. However, she acknowledges using the phrase "monster child" in reference to Student 1. She typically

checked in with Ms. Levin in the morning and would ask whether they would be dealing with the “monster child” or the “princess” that day. She never used the phrase in conversation with Student 1, or in any environment where another student could overhear.

32. On October 24, 2022, respondent first became aware that Student 1 was having a bad day shortly after lunch, when someone told respondent Student 1 was in the office and screaming. Respondent went to the office to assist. She acknowledges that she pretended to scream in silence while looking at Student 1. It was a technique she used frequently, because she found that it usually made Student 1 laugh, which helped her calm down. Respondent used the technique with other students as well, and no one ever complained about it. Ms. Levin told respondent that the technique was not working. However, once Ms. Levin walked away to take a break, the technique did help Student 1 calm down.

33. The Pioneer principal insisted that respondent take Student 1 to the playground for recess. When Ms. Levin’s break was over, she went out to the playground and respondent returned to the Learning Center. A few moments later, respondent heard Ms. Levin say over the radio, “Ms. Machleit I need you.” Respondent returned to the playground to find Student 1 on the ground and screaming hysterically. Respondent offered her hand, which Student 1 took, and they began walking toward the office. However, after a short distance, Student 1 sat down on the ground again. Respondent convinced her stand up and continue walking, but Student 1 sat down again and refused to move.

34. Respondent adamantly denies twisting Student 1’s arm. She does not know why Ms. Levin would say that she did, but she believes it is likely over something “personal.” Respondent believes Ms. Levin likely did something to injure Student 1 and

is trying to blame respondent for it. She does not believe she would have even been physically able to physically harm Student 1. Respondent was diagnosed with cancer in August 2021. She underwent radiation therapy, which resulted in fibrosis and severe pain in her upper extremities. Respondent submitted a note from her physician, dated June 1, 2023, which states, in pertinent part:

[Respondent] was under my care for cancer directed therapy from 12/13/21 through 1/20/22 for daily treatments. She has since been seen regularly in follow up. I have documented that around 9/2022, she complained of ongoing/worsening pain and discomfort in her right chest and right upper extremity which limited her mobility as a direct result of treatment. I referred her for physical therapy for evaluation and management.

35. Respondent did not tell Ms. Levin to record the incident with Student 1. Ms. Levin asked respondent if she should record the incident, and respondent told her it was illegal to video record a child without parental permission. Respondent told Ms. Levin that if she was going to record Student 1, it needed to be an audio recording only. Respondent did not learn until later that Ms. Levin recorded both audio and video of the incident.

36. Respondent denies that she was angry when she spoke to Student 1's mother on October 24, 2022. She explained that Student 1 had a tough day and was using inappropriate language, but she did not raise her voice or tell Student 1's mother that it was time for Student 1 "to go someplace else."

37. Since resigning from Pioneer, respondent has applied for substitute teaching positions but has not been approved. She no longer intends to return to the classroom and only requested a hearing in this matter out of principle.

CHARACTER WITNESS TESTIMONY

38. Respondent called several character witnesses to testify on her behalf at hearing, one of whom was Deva Smith. Respondent was the special education teacher for her two daughters. According to Ms. Smith, respondent is an "amazing woman." Her daughters had significant behavioral problems, and respondent always treated them with kindness and compassion. Ms. Smith believes Mr. Paturel is one of the worst things that happened to the District, because when he became superintendent "it all fell apart."

39. Sarah Giardin testified at hearing. Respondent was her two children's special education teacher. She never saw respondent behave inappropriately with a child. She was very caring and always communicated with her when her children had behavioral issues in school.

40. Katie Fitzpatrick worked as a special education instructional aide for the District for seven years. She never saw respondent become frustrated with her students. On the contrary, respondent always remained calm and professional, and she "had so much love for students."

41. Ms. Fitzpatrick trained Ms. Levin after she was hired. She believes Ms. Levin had her own ideas about how best to support special education students that differed from those Ms. Fitzpatrick was attempting to impart. However, she believes Ms. Levin is an honest person and does not think she would make up the allegations against respondent for no reason.

42. Nicole Stevens worked as a staff psychologist for the El Dorado County Office of Education from 2015 to 2023. She frequently interacted with respondent and never observed her behave inappropriately toward any student. Ms. Stevens is familiar with Student 1. She testified that Student 1 typically had between 15 and 32 behavioral outbursts per day, although she admitted she never personally witnessed that many. When questioned on how she arrived at her estimate, she replied that the outbursts were “documented.”

Analysis

43. Complainant bears the burden of proving by clear and convincing evidence that the allegations set forth in the Accusation are true, and that they constitute cause to discipline respondent’s credential. While four different causes for discipline are alleged, they all pertain to the allegations that respondent physically harmed Student 1 on two occasions in fall 2022.

44. Multiple witnesses testified at hearing about Student 1’s behavioral history. It is undisputed that she was a moderate to severe special education student who was assigned a one-on-one instructional aide, and that she was prone to tantrums and acts of violence. However, only two witnesses provided firsthand accounts regarding the allegations complainant contends constitute cause to revoke respondent’s credentials: Ms. Levin and respondent herself.

45. Ms. Levin testified that respondent twisted the skin on Student 1’s right forearm during a behavioral episode on October 24, 2022, causing Student 1 to scream in pain. She also testified that a week and a half prior to that incident, she saw respondent slam Student 1 into a chair in the Learning Center when she was not following directions. Respondent testified that she never twisted the skin on Student

1's arm as Ms. Levin described. Rather, she testified that she offered her hand for Student 1 to hold as they walked to the office. She denies ever slamming Student 1 into a chair in the Learning Center.

46. Evidence Code section 780 sets forth various factors to consider when determining the credibility of a witness. Relevant factors include: (1) the witness's demeanor while testifying; (2) the character of the witness's testimony; (3) the witness's capacity to perceive and recollect; (4) the existence or nonexistence of bias; (5) prior statements of the witness that are consistent or inconsistent with their testimony at hearing; (6) the existence or nonexistence of a fact testified to by the witness; and (7) the witness's attitude toward the action in which he or she testifies.

47. As stated above, Ms. Levin's demeanor remained calm throughout most of her testimony. However, she became visibly upset while viewing the recording when she heard Student 1 scream. Clearly, she is still emotionally affected by what she witnessed on October 24, 2022. Ms. Levin was standing next to Student 1 and clearly articulated what she witnessed respondent doing to Student 1's right forearm. Ms. Levin's testimonial account of what occurred was also very consistent with her prior verbal and written accounts shortly after the incident occurred.

48. Respondent testified that Ms. Levin simply made up the allegations. She was unable to explain why Ms. Levin would do so, but suspects it was over something "personal." Respondent also alleged Ms. Levin harmed Student 1. That allegation is unsubstantiated and contradicted by the overwhelming weight of the evidence. A.C. testified that both she and Student 1 liked and trusted Ms. Levin. Ms. Levin testified that she had a good relationship with Student 1.

49. It is also noteworthy that Ms. Levin's testimony was limited in nature to the two isolated incidents at issue here. She did not allege that respondent routinely abused Student 1 or any other child. She did not allege that respondent is a bad teacher or that she was unprofessional with Pioneer faculty or staff. Ms. Levin did not appear to exaggerate the allegations against respondent. That renders her account of each incident very credible. As she and respondent were the only adult eyewitnesses to each incident, Ms. Levin had every opportunity to embellish. She did not.

50. Respondent denied any wrongdoing for either incident in her interview with Mr. Paturel and in her testimony at hearing. She suggested alternatively that Student 1 was feigning injury or that Ms. Levin injured her and lied about it. However, she was unable to explain why Ms. Levin would have done so. Respondent testified she "loved" Student 1, even though Student 1 was clearly one of the most challenging Pioneer students and was prone to tantrums and violence against other children.

51. Student 1 did not testify at hearing. However, both Mr. Paturel and A.C. testified in detail about Student 1's behavior during the investigatory interview when she was shown photographs of Pioneer students and faculty in a yearbook. Student 1 reacted positively to photographs of her classmates. However, when she saw a photograph of respondent, she became angry and spontaneously exclaimed that respondent hurt her. The adults' observations of Student 1's behavior are admissible as direct evidence of her anger and state of mind following the incident on October 24, 2022. Student 1's statements are admissible as administrative hearsay, to the extent that they supplement or explain other evidence in the record. (Gov. Code, § 11513, subd. (d).) That evidence exists, in the testimony of Ms. Levin and A.C.

52. When all the evidence is considered, complainant established by clear and convincing evidence that the allegations in the Accusation are true. Therefore, cause exists to discipline respondent's credentials.

53. In *Morrison v. State Board of Education* (1969) 1 Cal.3d 214, the California Supreme Court concluded that a teaching credential cannot be disciplined for immoral conduct, unprofessional conduct, or conduct involving moral turpitude "unless that conduct indicates that the [educator] is unfit to teach." (*Id.* at p. 229.) The Court outlined factors to consider when determining whether an educator's conduct demonstrates unfitness to teach, which have been codified in California Code of Regulations, title 5, section 80302, subdivision (a). The factors are:

- (1) the likelihood that the conduct may have adversely affected students or fellow teachers, and the degree of such adversity anticipated;
- (2) the proximity or remoteness in time of the conduct;
- (3) the types of credentials held or sought by the person involved;
- (4) any extenuating or aggravating circumstances surrounding the conduct;
- (5) the praiseworthiness or blameworthiness of the motives resulting in the conduct;
- (6) the likelihood of recurrence of the question conduct;

(7) the extent to which disciplinary action may have an adverse impact or chilling effect on the constitutional rights of the person involved, or other teachers, and;

(8) the publicity or notoriety given to the conduct.

LIKELIHOOD OF ADVERSE EFFECTS ON STUDENTS OR OTHER TEACHERS

54. Respondent's misconduct clearly affected Student 1, as it caused her physical pain and emotional trauma. It is also negatively impacted Ms. Levin, in that she had difficulty sleeping after witnessing the incident on October 24, 2022.

PROXIMITY OR REMOTENESS IN TIME

55. The incidents at issue here occurred nearly three years ago. The offending conduct is more remote than proximate in time.

TYPES OF CREDENTIALS HELD OR SOUGHT

56. Respondent holds a Clear Education Specialist Instruction Credential and a Crosscultural, Language, and Academic Development Certificate. She previously held other credentials, including a Clear Multiple Subject Teaching Credential, over which the Commission retains jurisdiction. (Ed. Code, § 44440, subd. (b)(3).)

EXTENUATING OR AGGRAVATING CIRCUMSTANCES

57. Neither the Education Code nor the applicable regulations specify what constitutes "extenuating circumstances." However, California Code of Regulations, title 5, section 80300, subdivision (m), defines "mitigating factor" as "an event or circumstance which demonstrates that the public, school children and the profession would be adequately protected by a more lenient degree of adverse action or no

adverse action whatsoever.” California Code of Regulations, title 5, section 80300, subdivision (b), lists aggravating factors, the presence of which indicate a greater degree of discipline is necessary to protect students and the teaching profession. These factors include, in pertinent part: (1) a prior record of adverse action; (2) that the misconduct significantly harmed a child, the public, or the educational system; and (3) the credential holder demonstrated indifference toward the consequence of the misconduct.

58. Respondent has no prior record of discipline with the Commission. However, as discussed above, her misconduct significantly harmed Student 1 and Ms. Levin. Respondent has not accepted any responsibility for her actions. Instead, she alleged that either Student 1 or Ms. Levin is lying about what occurred.

PRAISEWORTHINESS OR BLAMEWORTHINESS OF MOTIVES

59. There was nothing praiseworthy about respondent’s actions. She became frustrated with Student 1’s behavior and resorted to physical violence to correct it.

LIKELIHOOD OF RECURRENCE

60. Respondent resigned from Pioneer, effective May 15, 2023. She does not intend to return to the classroom. The likelihood of the conducting recurring is minimal.

CHILLING EFFECT

61. There is no evidence that disciplining respondent would have a chilling effect on respondent’s constitutional rights or the constitutional rights of other educators.

PUBLICITY OR NOTORIETY GIVEN TO CONDUCT

62. No evidence was presented that the conduct at issue was either publicized or notorious.

Conclusion

63. Complainant bears the burden of proving by clear and convincing evidence that respondent engaged in, unprofessional conduct, immoral conduct, and conduct involving moral turpitude which indicates she is unfit to teach. When all the evidence is considered in light of the *Morrison* factors, complainant has met her burden.

LEGAL CONCLUSIONS

Burden and Standard of Proof

1. Complainant bears the burden of proving the allegations in the Accusation by clear and convincing evidence to a reasonable certainty. (*Gardner v. Commission on Professional Competence* (1985) 164 Cal.App.3d 1035.) Clear and convincing evidence requires proof that is so clear as to leave no substantial doubt and that is sufficiently strong to command the unhesitating assent of every reasonable mind. (*In re Marriage of Brooks* (2008) 169 Cal.App.4th 176, 190.)

Applicable Law

2. Pursuant to the Education Code, commencing with section 44000, and California Code of Regulations, title 5, commencing with section 80000, the Commission is responsible for credentialing teachers in public schools in California,

including issuing credentials and taking adverse action against applicants and credential holders.

3. Education Code section 44345 provides in part:

The Commission may deny any application for the issuance of a credential or for the redial of a credential made by an applicant who falls under any of the following categories:

[1] ... [1]

(e) Has committed any act involving moral turpitude.

[1] ... [1]

Any denial pursuant to subdivisions (a) to (e), inclusive, shall be based upon reasons related to the applicant's fitness to teach or fitness to perform other duties which the credential would authorize the applicant to perform.

4. Moral turpitude has been described as "any crime or misconduct committed without excuse, or 'any dishonest or immoral' act not necessarily a crime." (*Clerici v. Department of Motor Vehicles* (1990) 224 Cal.App.3d 1016, 1017.)

5. Education Code section 44421 provides in part:

The Commission on Teacher Credentialing shall privately admonish, publicly reprove, revoke, or suspend for immoral or unprofessional conduct, or for persistent defiance of, and refusal to obey, the laws regulating the duties of persons

serving in the public school system, or for any cause that would have warranted the denial of an application for a credential or the renewal thereof, or for evident unfitness for service.

6. The California Supreme Court has recognized that the terms “immoral conduct” and “unprofessional conduct” substantially overlap one another and conduct that constitutes one often includes the other. (*Morrison v. State Bd. of Ed.*, *supra*, 1 Cal.3d 214, 221, fn. 9.) Additionally, in *San Diego Unified School District v. Commission on Professional Competence* (2011) 194 Cal.App.4th 1454, the court explained:

Moreover, the definition of immoral or unprofessional conduct must be considered in conjunction with the unique position of public school teachers, upon whom are imposed “responsibilities and limitations on freedom of action which do not exist in regard to other callings.” [Citation.]

(*Id.*, at p. 1466.)

7. Immoral conduct is sometimes considered as synonymous with “dishonesty” or a high degree of unfairness. (*Board of Education of the San Francisco Unified School District v. Weiland* (1960) 179 Cal.App.3d 8089, 811.) The court explained in *Palo Verde Unified School District of Riverside v. Hensey* (190) 9 Cal.App.3d 967, 972:

The term “immoral” has been defined as that which is hostile to the welfare of the general public and contrary to good morals. Immorality includes conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity,

dissoluteness; or as willful, flagrant, or shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare.

8. "Evident unfitness for service" means a teacher is clearly not fit, not adapted to or unsuitable for teaching, ordinarily by reason of temperamental defects or inadequacies. (*Woodland v. Joint Unified School District v. Commission on Professional Competence* (1992) 2 Cal.App.4th 1429, 1444.) "Unlike 'unprofessional conduct,' 'evident unfitness for service' connotes a fixed character trait, presumably not remediable merely on receipt of notice that one's conduct fails to meet the expectations of the employing school district." (*Id.*)

9. Education Code section 44440, subdivision (b), provides:

The suspension or expiration of any credential, its surrender without the written consent of the commission, or a revocation pursuant to Section 44423 does not deprive the commission of its authority to do the following:

(1) Institute or continue a disciplinary proceeding against the credential holder upon any ground provided by law.

(2) Enter an order suspending or revoking the credential.

(3) Issue a public reproof or private admonition to the credential holder.

10. California Code of Regulations, title 5, section 803000, states in part:

[¶] ... [¶]

(b) "Aggravating factor" is an event or circumstance which demonstrates that a greater degree of adverse action for an act of professional misconduct is needed to adequately protect the public, schoolchildren or the profession.

Aggravating factors may include, but are not limited to, the following:

[¶] ... [¶]

(2) that the misconduct evidences multiple acts of wrongdoing or demonstrate a pattern of misconduct;

(3) that the misconduct was surrounded by or followed by bad faith, dishonesty, or other violation of the laws governing educators;

(4) that the misconduct significantly harmed a child entrusted to the care of a credential holder or applicant, significantly harmed the public or the educational system;

(5) that the holder or applicant demonstrated indifference to toward the consequence of the misconduct, which includes failure to comply with known court orders; or

[¶] ... [¶]

11. As set forth in Factual Finding 53, California Code of Regulations, title 5, section 80302, subdivision (a), sets forth the factors to consider "to determine the

relationship between the alleged misconduct and the applicant's or holder's fitness, competence, or ability to effectively perform the duties authorized by the credential."

Causes for Discipline

12. Based on the Factual Findings and Legal Conclusions as a whole, complainant established by clear and convincing evidence that respondent engaged in unprofessional conduct by resorting to physical violence against Student 1. Consequently, cause exists to discipline respondent's credentials pursuant to Education Code section 44421.

13. Based on the Factual Findings and Legal Conclusions as a whole, complainant established by clear and convincing evidence that respondent engaged in immoral conduct by resorting to physical violence against Student 1. Consequently, cause exists to discipline respondent's credentials pursuant to Education Code section 44421.

14. Based on the Factual Findings and Legal Conclusions as a whole, complainant established that respondent committed acts demonstrating her evident unfitness for service by resorting to physical violence against Student 1. Consequently, cause exists to discipline respondent's credentials pursuant to Education Code section 44421.

15. Based on the Factual Findings and Legal Conclusions as a whole, complainant established by clear and convincing evidence that respondent committed acts of moral turpitude by resorting to physical violence against Student 1. Consequently, cause exists to discipline respondent's credentials pursuant to Education Code sections 44421 and 44345, subdivision (e).

Aggravating Factors

16. Complainant established by clear and convincing evidence that respondent's misconduct evidences multiple acts of wrongdoing demonstrating a pattern of misconduct, was surrounded by bad faith, and significantly harmed a child trusted to her care. Complainant also established by clear and convincing evidence that respondent has demonstrated indifference toward the consequence of her misconduct. Consequently, complainant established that a greater degree of adverse action is needed to adequately protect the public, schoolchildren, or the teaching profession.

Appropriate Discipline

17. Pursuant to Education Code section 44421, the Commission shall privately admonish or publicly reprove a credential holder, or revoke or suspend her credential, if the credential holder has engaged in immoral or unprofessional conduct, action that warrants denial of an application for a credential or the renewal thereof, or is evidently unfit for service. Careful consideration has been given to the available disciplinary options. Respondent has had a lengthy career as a teacher and has no disciplinary record with the Commission. However, she lost her temper and physically harmed a five-year-old special education student trusted to her care on two separate occasions. While the incidents appear to have been isolated, respondent's behavior demonstrates a grievous lapse in judgment expected of an educator. When all the evidence is considered, complainant demonstrated that respondent is unfit to teach, and revocation of her credentials is necessary to protect children, the public, and the teaching profession.

ORDER

The credentials and certificates issued to respondent Nanette Machleit by the California Commission on Teacher Credentialing are REVOKED.

DATE: June 5, 2025

Matthew Block

MATTHEW S. BLOCK

Administrative Law Judge

Office of Administrative Hearings